



File No.: EXP202208755

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On February 22, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against VODAFONE ESPAÑA, S.A.U. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202208755

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: Ms. A.A.A. (hereinafter, the complainant), on February 13, 2022, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against VODAFONE ESPAÑA, S.A.U., with NIF A80907397 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The complainant states that she became aware that in an establishment of the respondent (INYTEL, distributor of Vodafone), a contract with a new rate, not requested by her, was formalized without her consent.

Along with the complaint, she provides a copy of the contract formalized, without her signature and without her consent, on January 14, 2022, as well as the emails addressed to the respondent in which she pointed out the irregularities in said contracting.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGGD), the complaint was forwarded to INGENIERIA y TELECOM JAEN SLU, hereinafter INYTEL, and to VODAFONE ESPAÑA, S.A.U., so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), by electronic notification, was received on March 7, 2022, as stated in the certificate in the file.

On April 4, 2022, this Agency received a written response from INGENIERIA y TELECOM JAEN SLU, hereinafter INYTEL, acknowledging that not all necessary actions had been taken nor had all aspects related to the processing of personal data been duly considered, for which the management of the company INYTEL has decided to adopt the necessary measures to ensure compliance with the legislation on personal data protection and to give this aspect of the company the highest priority to ensure that the rights and freedoms of the data subjects are respected at all times.

It also states that while it is true that offers for customers can be sent to Vodafone from their establishment through the information system provided by Vodafone itself, activation necessarily requires the certified signature of the customer via SMS, so that contracts are always sent to Vodafone for subsequent confirmation by the customer. This confirmation is beyond their control. In other words, they cannot confirm offers or contracts from their establishment. Finally, they add that in no case was their intention to establish a contract without the consent of the interested party, but rather the opposite, to facilitate the process for the customer so that they could benefit from a more advantageous offer but always with their necessary approval.

On April 6, 2022, this Agency received a written response from VODAFONE ESPAÑA, S.A.U., indicating that this is not a fraudulent contracting, but that the activation of the promotion or discount applied to the complainant's rate on January 14, 2022, was due to an error in the systems. It states that the commitment has been removed, while maintaining the discount applied to her rate. Additionally, a response letter has been sent to the complainant informing her of the above.

It adds that the complainant was interested in renewing the application of the promotion that Vodafone had been applying to her monthly rate and communicated this to the sales staff, which is why, from the Vodafone store located in the Alcampo shopping center, it was explained to her that this renewal had to be confirmed through a certified signature, by sending a confirmation message to her phone number and confirming a security code. Once the signature order was sent through the system, an error occurred that caused the system to activate the promotion two days after sending said order.

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It is emphasized that what occurred did not, at any time, harm the interests of the claimant; in any case, the only effect of the incident was the payment of a lesser amount on her bill for the services contracted with Vodafone.

Finally, it is noted that upon detecting what happened in the Vodafone store, the employees of the latter proceeded to contact the claimant amicably to find a solution to her satisfaction. In light of this, Vodafone has decided to maintain the promotion on the interested party's rate, eliminating the associated commitment. The client was informed of these proceedings by a response letter sent on March 30, 2022.

THIRD: On April 19, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: The General Subdirector of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, having knowledge of the following points:

INVESTIGATED ENTITIES

During the present actions, the following entities have been investigated:

INGENIERÍA Y TELECOM JAÉN, S.L. with NIF B23693260, located at CRTA. BAILÉN-MOTRIL, KM 44 - URB. LAS LOMAS - 23170 LA GUARDIA DE JAÉN (JAÉN)

and

VODAFONE ESPAÑA, S.A.U. with NIF A80907397, located at AVDA. DE AMÉRICA, 115 - 28042 MADRID (MADRID)

RESULT OF THE INVESTIGATION ACTIONS

On May 31, 2022, the Data Inspection conducted an inspection visit at the headquarters of the company VODAFONE, during which the following facts were revealed as recorded in the Inspection Report:

1.- Vodafone has a network of stores (franchises) throughout Spanish territory for the marketing of its own products and services. The stores have an application provided by VODAFONE called RETAIL-X for the management of services and contracts with customers.

2.- The procedure followed in the franchises to carry out the contracting of a VODAFONE product is as follows:

- Only in-person contracts are made, as telephone contracts are carried out exclusively by agencies or personnel of VODAFONE.

- When a customer arrives at a store, a summary of the offer is presented, according to the needs expressed by the customer. Prior to this, the DNI is requested to check if they are already a customer of VODAFONE and to retrieve their data. If the customer accepts the offer, it is sent to the system for the contract to be signed. Normally, the signing process is digitally certified, through the sending of

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from an SMS to the contact phone number provided by the client, for which they have the service of a certifying entity.

In cases where the client does not have a mobile line, or for some reason does not receive the SMS, a manual signature can be performed, which consists of printing the proposal on a contractual document that must be signed by the client in handwriting.

To initiate the processing of the service activation, the client must have given their consent by signing the contract before leaving the store.

Manual contracts are kept in the store for 6 years and a copy is sent to VODAFONE, for which they have contracted the services of a logistics company that is responsible for collecting and scanning the contracts to register them in the VODAFONE system.

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The stores, as a courtesy or customer service gesture, to ensure customer loyalty, sometimes contact the client by phone to inform them of events related to their rates, such as the imminent expiration of discounts applied to their rates so that they can proceed with their renewal.

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The inspectors verified that the following records were in the VODAFONE information system:

- o On January 12, 2022, at 9:45, an order was created, which according to VODAFONE representatives corresponds to the order to renew the discount on the rate that the client had been enjoying. It is verified that this order is associated with the seller FRANQ430, which corresponds to INGENIERIA y TELECOM JAEN SLU.
- o On January 14, 2022, at 11:09, several entries of "Certified Signature" are recorded. VODAFONE representatives stated that these entries correspond to the generation of the certified signature that is sent to the client's contact mobile line.
- o In the "Communications Audit" tab, which according to VODAFONE representatives shows the SMS communications maintained with the client, there are no SMS records indicating that the certified signature process has been completed.
- o On January 14 at 11:29, there is an entry of a change in the signature method. VODAFONE representatives stated that since there was no response to the certified signature SMS from the client, the method of manual signature was changed. This change is made manually by the salesperson managing the contract.
- o The inspectors obtained a copy of the Mobile Service contract of the claimant that is in VODAFONE. VODAFONE representatives stated that the contract kept in the store does not contain the handwritten signature of the client due to an error in the store's commercial management process by having activated the contract while inadvertently omitting the procedure for the client's handwritten signature.

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VODAFONE representatives sent, at the request made in the inspection report, a screenshot of the SMS that were sent to process the

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certified signing process, which was sent on January 14, 2020, as evidenced by the screenshot extracted from Vodafone's customer relationship management system.

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The representatives of VODAFONE provided, at the request made in the inspection report, a copy of the contract signed with the franchise and the annexes that regulate penalties (Annex I) and the protection of personal data (Annex V). Annex I includes a series of scenarios in which VODAFONE may impose a financial penalty on those agents who do not meet the necessary requirements for the contracting and activation of services (regulated in clause four of Annex I). The contract includes, among others, the following clauses:

“14.6 As a consequence of the provision of the services that constitute the object of this contract, the AGENT may access certain personal data of the individuals who, through them or their collaborators, in accordance with clause 6.1 of this contract, contract the Services of VODAFONE. For this reason and in accordance with current regulations, the AGENT will be considered a data processor, and must formalize the Standard Data Processing Agreement attached as Annex IV, through which their obligations in this matter are collected.”

Annex V to the contract includes, among others, the following clauses:

“2.1. The Data Processor guarantees and commits that at all times:

2.1.1. It will only process Personal Data to carry out the activities entrusted in the Agreement, in accordance with the purposes assigned and as agreed in writing by the parties, and will only act in accordance with the instructions provided in writing by Vodafone. In particular, the Data Processor will not exercise control over, nor transfer such Personal Data to a third party, unless Vodafone expressly authorizes it in writing;

2.1.1.1. it will not process, apply, or use the Personal Data for any purpose other than that required by Vodafone and that is necessary to provide the agreed Services;

2.1.1.2. it will not process the Personal Data for its own purposes nor include Personal Data in products or services offered to third parties;

2.1.1.3. it must complete a separate Treatment Appendix independently for each Service that requires the Processing of Personal Data.”

CONCLUSIONS:

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VODAFONE has not demonstrated the consent of the claimant for the contracting and activation of the update of the mobile phone service rate of VODAFONE that they had been enjoying.

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This contracting was carried out manually at the INYTEL store (VODAFONE franchise), without any record that the customer, here the claimant, gave their consent by signing the contractual document.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Obligation breached

The claimed facts materialize in the contracting and activation of the update of the mobile phone service rate of VODAFONE that the claimant had been enjoying without any record of their consent, which could constitute a violation of data protection regulations.

In the specific case being examined, the conclusion of a contract for the activation of the promotion or discount applied to the claimant's rate, according to Article 4.2 of the GDPR, constitutes a processing of personal data, and its protection is the subject of said Regulation.

Article 4 of the GDPR defines:

2) “processing”: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation, erasure or destruction;

7) “data controller” or “controller”: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States;

In this case, despite the irregularity being executed by the data processor, VODAFONE ESPAÑA, S.A.U. is the responsible party for the processing.

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of data now analyzed, since as defined in Article 4.7 of the GDPR, it is the one that determines the purposes and means of such activity.

The essence of the role of the data processor is that personal data is processed on behalf of and for the account of the data controller. In other words, the data processor acts on behalf of and for the account of the data controller, is at the service of the interest of the data controller in carrying out a specific task, and therefore follows the instructions established by the data controller, at least regarding the purpose and essential means of the entrusted processing.

It is therefore pertinent to analyze whether the processing of personal data carried out for the activation of the promotion or discount applied to the claimant's rate is in accordance with the provisions of the GDPR.

The General Data Protection Regulation, in its Article 4.11, defines the consent of the data subject as “any freely given, specific, informed and unambiguous indication of the data subject's wishes, by which he or she, by a statement or by a clear affirmative action, signifies agreement to the processing of personal data relating to him or her.”

In this regard, Article 6.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights, establishes that “in accordance with the provisions of Article 4.11 of Regulation (EU) 2016/679, the consent of the affected party is understood as any freely given, specific, informed and unambiguous indication of the affected party's wishes, by which he or she accepts, either by a statement or by a clear affirmative action, the processing of personal data concerning him or her.”

III

Article 6.1 of the GDPR

The GDPR requires that the processing of personal data be lawful (Article 5.1.a), a principle that is developed in Article 6, the first paragraph of which states that processing shall be lawful only if at least one of the circumstances listed applies.

Thus, Article 6 of the GDPR under the heading “Lawfulness of processing” specifies in its paragraph 1 the cases in which the processing of third-party data is considered lawful:

“1. Processing shall be lawful only if at least one of the following conditions applies:

a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;

b) processing is necessary for the performance of a contract to which the data subject is a party or in order to take steps at the request of the data subject prior to entering into a contract;

c) processing is necessary for compliance with a legal obligation to which the data controller is subject;

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d) the processing is necessary to protect the vital interests of the data subject or another natural person.

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject which require the protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

On this issue of the lawfulness of processing, Recital 40 of the aforementioned GDPR also emphasizes that "For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis established by law, whether in this Regulation or under another Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation to which the data controller is subject or the necessity of performing a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract."

The documentation in the file provides clear indications that the respondent carried out the contracting without evidence that the client, here the claimant, gave her consent by signing the contractual document. As stated in the response letter dated April 6, 2022, the activation of the promotion or discount applied to the claimant's rate on January 14, 2022, was due to an error in the systems. The respondent states that the claimant was interested in renewing the application of the promotion that Vodafone had been applying to her monthly rate and communicated this to the sales representatives, which is why, from the Vodafone store located in the Alcampo shopping center, it was explained to her that this renewal had to be confirmed by certified signature, through the sending of a confirmation message to her phone number and the confirmation of a security code. Once the signature order was sent through the system, an error occurred in the system that caused the promotion to be activated two days after sending that order.

The lack of diligence displayed by the respondent in fulfilling the obligations imposed by personal data protection regulations is, therefore, evident. A diligent compliance with the principle of lawfulness in the processing of third-party data requires that the data controller be able to prove it (principle of proactive responsibility), which, in the case analyzed, means that it must be able to demonstrate that the person with whom it contracted provided her consent by means of an electronic or handwritten signature of the contract.

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It should be noted that VODAFONE ESPAÑA has not clarified the reasons why it was possible for a contract (renewal) to be activated without an electronic signature from the claimant (confirmation via code sent by SMS).

In accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement, attributable to the responding party, for violation of Article 6.1 of the GDPR.

IV

Classification of the infringement of Article 6.1 of the GDPR

If confirmed, the aforementioned infringement of Article 6.1 of the GDPR could imply the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

“The infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, Article 72 “Infringements considered very serious” of the LOPDGDD indicates:

“1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.”

V

Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 is, in each individual case, effective, proportionate, and dissuasive.

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2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects;

d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;

e) any previous infringement committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42;

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The link of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.

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g) To appoint, when not mandatory, a data protection delegate.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In accordance with the transcribed provisions, and without prejudice to what may result from the instruction of the procedure, for the purpose of determining the amount of the sanction for the infringement of Article 6.1 of the GDPR, it is appropriate to scale the fine taking into account:

Article 76.2 b) LOPDGDD: “The connection of the infringer's activity with the processing of personal data”

It is known that the respondent is an entity with more than fifteen million customers whose personal data is systematically processed in the exercise of its powers as one of the main telecommunications operators.

This circumstance determines a higher degree of demand and professionalism and, consequently, of responsibility of the entity in relation to the processing of personal data.

Considering the factors presented, the initial valuation of the amount of the fine is €70,000 for the infringement of Article 6.1 of the aforementioned GDPR.

VI

Adoption of measures

If the infringement is confirmed, it could be agreed to impose on the controller the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate such conduct to open a further administrative sanctioning procedure.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

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FIRST: TO INITIATE SANCTIONING PROCEDURE against VODAFONE ESPAÑA, S.A.U., with NIF A80907397, for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO APPOINT B.B.B. as instructor and C.C.C. as secretary, indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.4 of that regulation, an administrative fine of €70,000.00

FIFTH: TO NOTIFY this agreement to VODAFONE ESPAÑA, S.A.U., with NIF A80907397, granting a hearing period of ten working days for it to submit allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number indicated in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; which will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €56,000.00, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €56,000.00, and its payment will imply the termination of the procedure, without prejudice to the measures that may be imposed.

The reduction for the voluntary payment of the sanction is cumulative to the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In

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In this case, if both reductions were to be applied, the amount of the fine would be set at 42,000.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative pathway against the fine.

In the event that you choose to proceed with the voluntary payment of either of the amounts indicated above (56,000.00 euros or 42,000.00 euros), you must make the payment by depositing it into account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

Additionally, you must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of nine months from the date of the initiation agreement or, where applicable, from the draft initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On March 14, 2023, the respondent has proceeded to pay the fine in the amount of 56,000 euros, making use of one of the two reductions provided for in the previously transcribed Initiation Agreement. Therefore, the acknowledgment of responsibility has not been established.

THIRD: The payment made entails the renunciation of any action or appeal in the administrative pathway against the fine, in relation to the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which will be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202208755, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway as prescribed by Article 114.1.c) of

Law 39/2015, of October 1, on the Administrative Procedure

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Common of the Public Administrations, interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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